

IN THE SUPREME COURT OF PAKISTAN
(Original Jurisdiction)

PRESENT:

Mr. Justice Umar Ata Bandial, CJ
Mr. Justice Ijaz ul Ahsan
Mr. Justice Syed Mansoor Ali Shah
Mr. Justice Munib Akhtar
Mr. Justice Yahya Afridi
Mr. Justice Sayyed Mazahar Ali Akbar Naqvi
Mrs. Justice Ayesha A. Malik

Constitution Petition No.24 to 26 of 2023

(Trials of Civilian under the Army Act, 1952 is violative of the Constitution)

And

C.M. Appeal No. 80 of 2023 in Const. Petition Nil of 2023

(Declaration of trial of civilians under the Army Act, 1952 as unconstitutional, void and of no legal effect.)

Jawwad S. Khawaja
(in Const.P.24/2023)

Aitzaz Ahsan
(in Const.P.25/2023)

Karamat Ali and others
(in Const.P.26/2023)

Imran Ahmed Khan Niazi
(in C.M. Appeal 80/2023)

Petitioner(s)

Versus

Federation of Pakistan, etc.
(in Const.P.24/2023)

Federation of Pakistan through the
Secretary, Ministry of Law and Justice,
Islamabad and others
(in Const.P.25-26/2023)

Federation of Pakistan through Ministry of
Defence through its Secretary and others
(in C.M. Appeal 80/2023)

...Respondent(s)

For the Petitioner(s) : Kh. Ahmad Hosain, ASC
(in Const.P.24/2023)

Sardar Muhammad Latif Khan Khosa,
Sr. ASC

Mr. Salman Akram Raja, ASC
(in Const.P.25/2023)

Mr. Faisal Siddiqi, ASC
(in Const.P.26/2023)

Mr. Shoaib Shaheen, ASC

Mr. Ajmal Ghaffar, ASC

Syed Rifaqat Hussain Shah, AOR
(in C.M. Appeal 80/23)

- For the Federation : Mr. Mansoor Usman Awan,
Attorney General for Pakistan
Ch. Aamir Rehman, Addl. AGP
- For Govt.
of Balochistan : Mr. Muhammad Ayaz Swati, Addl.AG
- For Govt. of KP : Mr. Sultan Mazhar Sher Khan, Addl.AG
- For Govt. of Punjab : Mr. Waseem Mumtaz Malik, Addl.AG *with*
Afzal Bashir, Deputy Secy. Home Deptt.
- For Govt. of Sindh : Mr. Akbar Hussain, AG-Sindh *with* Mr.
Mohsin Shah, Focal Personal to Chief
Secretary
(Via video link from Karachi)
- For Ministry of Defence : Brig (Rtd) Falak Naz, Legal Advisor
Maj. Zahid Hussain, Law Officer
- For Imran Ahmed Khan Niazi : Mr. Uzair Karamat Bhandari, ASC
(Via video link from Lahore)
- Date of Hearing : 23.06.2023.

ORDER

Learned counsel for the petitioners in Constitution
Petition Nos.24 and 26 have concluded their arguments.

2. Additionally, the learned Attorney General for Pakistan
has informed the Bench of the following points:

- i. The figures for persons in civilian custody in the Provinces
and Islamabad Capital Territory ("**ICT**") are: ICT: 0, Khyber
Pakhtunkhwa: 4, Punjab: 616, Sindh: 172. For Balochistan
no information was provided; and
- ii. In Punjab 81 women were taken into civilian custody, of
which 42 have either been released or are on bail whereas
the remaining 39 are in judicial custody; and

iii. Presently 102 civilians from across the country are in military custody. This figure does not include any women, children, advocates and journalists.

3. To come up for hearing on **26.06.2023** at 09:30 am for the submissions of Mr. Salman Akram Raja, ASC.

Islamabad
23.06.2023
Sarfraz/Meher LC

Yahya Afridi, J.- The entire edifice of a credible justice system is based on public trust. In the current politically charged scenario, where the term of the present Government is drawing close to its end and the nation is gearing up for fresh elections, the political murmurings against the composition of the present Bench could be palatable. But what is most serious and cannot be disregarded is that there are objections in writing from within the members of the Bench, to the very constitution of the Bench hearing the present petitions. In this regard, the Hon'ble Senior Puisne Judge has recorded in writing his said objections, and the same are by now in the public domain. Thus, the matter of the present composition of the Bench warrants urgent attention and reconsideration by the Hon'ble Chief Justice of Pakistan, lest it may dampen public trust in the justice system.

2. In no way am I endorsing or agreeing with the reasons recorded by the Hon'ble Senior Puisne Judge in his written note. At this stage of the present proceedings, I do not find it appropriate to comment on the legality thereof. Yet, even if one may not agree with the law points raised in the objections of the Hon'ble Senior Puisne Judge, propriety demands taking appropriate measures for "maintenance of harmony" within the Court, the "integrity of the institution", and "public trust in the Court". As a first step, the appropriate measure, in my earnest view, would be that a Full Court Bench of this Court should be constituted to hear the present petitions. Without taking such a measure, I submit with utmost respect, any judgment rendered in these petitions by the present Bench may lead to the diminishing of the deference the decision requires and deserves.

3. It is, therefore, most earnestly urged that the Hon'ble Chief Justice of Pakistan may consider the reconstitution of the present Bench, and refer the present petitions to a Full Court Bench.